

CENTRE-STATE AND INTER-STATE RELATION

One constitutional rail: competence -> administration -> finance -> coordination -> reform

ARTS 245-263

ARTS 266-293

ARTS 301-307

32 MCQs

11 PYQs

6 MAINS MODELS

01

FOUR-DIMENSIONAL CONSTITUTIONAL MAP

LEGISLATIVE

Articles 245-255
Territory, Lists, gateways, conflict

ADMIN

Articles 2
Director

FINANCIAL

Articles 266-293
Funds, taxes, grants, GST, borrowing

INTER-

Articles 1
Disputes

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

02

TERRITORY, LISTS, GST AND RESIDUE

1 | TERRITORY

Article 245
Parliament / State reach

2 | FIELD

Article 246
Three Lists

3 | GST

Article 246A
Special simultaneous power

CONTROL: TERRITORY AND SUBJECT ARE SEPARATE; RESIDUE IS GENUINELY RESIDUAL.

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

03

PARLIAMENT IN THE STATE FIELD

249 | NATIONAL INTEREST

Rajya Sabha 2/3 present-voting
<= 1 year; renewable; 6-month tail

250 | NATIONAL EMERGENCY

Temporary State-field power
6-month tail

LATIONS

tion -> reform

ADMINISTRATIVE

Articles 256-263 + 312
Directions, entrustment, services, agencies

INTER-STATE

Articles 131, 261-263, 301-307
Disputes, recognition, councils, market

5 | RESIDUE

Article 248 + Entry 97
Only after Lists II/III

4 | COURTS

Article 247
Additional courts

252 | STATE REQUEST

2+ State resolutions
Later adoption; Parliament amends/repeals

03

PARLIAMENT IN THE STATE FIELD

249 | NATIONAL INTEREST

Rajya Sabha 2/3 present-voting
 <= 1 year; renewable; 6-month tail

250 | NATIONAL EMERGENCY

Temporary State-field power
 6-month tail

253 | INTERNATIONAL

Treaty, agreement, convention or international decision

356-357 | BREAKDOWN

Parliamentary State power
 Law continues until altered

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

04

DOCTRINES, REPUGNANCY AND STATE BILLS

TRUE CHARACTER

Pith and substance

COMPETENCE

Territorial nexus
 Incidental encroachment
 Colourable legislation

IMPLEMENTATION

Delegated detail within parent Act
 Essential policy retained

PROCEDURE

Articles 200/201/255
 304(b) previous sanction

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

05

ADMINISTRATIVE COOPERATION AND AGENCIES

256 | COMPLIANCE

State implements parliamentary/applicable law; Union may direct

257 | N

Commur

258 / 258A

Reciprocal entrustment with the other government's consent

259 / 2

259 omit

312 | SERVICES

Rajya Sabha trigger; IAS, IPS, Indian Forest Service

DSPE |

Section 6

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

CY

252 | STATE REQUEST

2+ State resolutions
Later adoption; Parliament amends/repeals

ARTICLE 251

Temporary Union priority for 249/250 inconsistency

ITATION

tail within parent Act
cy retained

COEXISTENCE

Harmonious construction

CONFLICT

Article 254
Assent exception
Later Union override

PROCEDURE

257 | NON-IMPEDIMENT

Communications, railway protection and cost rules

259 / 260

259 omitted; 260 agreed functions outside India

DSPE | CBI

Section 6 State consent; Articles 32/226 court exception

312 | SERVICES

Rajya Sabha trigger; IAS, IPS, Indian Forest Service

DSPE |

Section 6

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

06

DUTY, BREAKDOWN AND JUDICIAL STATUS

ARTICLE 355

Union duty: protect States and ensure constitutional government

ARTICLE 365

Non-compliance may support an inference; never automatic

Separate

CASE CONTROL

S.R. Bommai: Basic Structure, review, floor test
West Bengal 2024: preliminary ruling only

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

07

FINANCIAL CONSTITUTION

266-267

Consolidated + Contingency Funds

268

Union levy; State collection

269 / 270

Assignm

271

Union surcharge; GST excluded

273 / 274

Historical grant / Bill recommendation

275

Constitut

279

Net proceeds; CAG certificate

280-281

Finance Commission; laying

282

Any-pub

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

08

FISCAL EVOLUTION, IMBALANCE AND BORROWING

EVOLUTION

Plan-era Article 282 discretion
-> NITI + FC devolution
-> GST shared rule

HORIZ

Income c
Populatio
Four crit

TWO IMBALANCES

AUTON

DSPE | CBI

Section 6 State consent; Articles 32/226 court exception

ARTICLE 356

Separate exceptional remedy; Parliament + judicial review

ARTICLE 357

Exercise of State legislative power and continuation rule

CASE CONTROL

269 / 269A

Assignment / IGST apportionment

270

Divisible-pool distribution

275

Constitutional grants

276

Profession tax <= Rs 2,500

282

Any-public-purpose grants

292-293

Union / State borrowing

HORIZONTAL WEIGHTS

Income distance 42.5
Population 17.5
Four criteria at 10 each

AUTONOMY PRESSURES

EVOLUTION

Plan-era Article 282 discretion
-> NITI + FC devolution
-> GST shared rule

TWO IMBALANCES

Vertical: levels
Horizontal: States
Never confuse the two

16FC STATUS

Report 17 Nov 2025
Award 2026-31
41% divisible pool

HORIZ

Income c
Populatio
Four crit

AUTON

Cesses /
CSS conc
Transfer

KERALA

Interim r
Five-judg
Merits no

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

09

GST AS NEGOTIATED FISCAL FEDERALISM

ARTICLE 246A

Simultaneous GST law-making
Parliament exclusive inter-State

ARTICLE 269A

Inter-State levy/collection
Apportionment

MOHIT MINERALS

Persuasive, not binding primary law
Collaborative dialogue
Non-binding != irrelevant

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

10

WATER DISPUTES, ARTICLE 131 AND COUNCILS

LEGAL-RIGHT DISPUTE

Article 131
Binding Supreme Court adjudication
Subject to exclusions

DEVELOPMENT ADVICE

River Boards Act, 1956
Advisory basin mechanism

REGIONAL FORUMS

Five statutory Zonal Councils
NEC under separate 1971 Act

WATER

Article 26
Tribunal

POLICY

Article 26
Inter-Sta

LEGAL

Article 26
Proof/eff

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

HORIZONTAL WEIGHTS

Income distance 42.5
Population 17.5
Four criteria at 10 each

AUTONOMY PRESSURES

Cesses / surcharges
CSS conditions
Transfer timing

KERALA 2024

Interim relief denied
Five-judge reference
Merits not settled

ARTICLE 269A

ARTICLE 279A

Council recommendation
Quorum 1/2
Decision 3/4 weighted

MOHIT MINERALS

WATER-SPECIFIC ROUTE

Article 262 + 1956 Act
Tribunal + section 11 bar

POLICY COORDINATION

Article 263 + 1990 Order
Inter-State Council advice

LEGAL CONTINUITY

Article 261
Proof/effect + civil judgment execution

DEVELOPMENT ADVICE

River Boards Act, 1956
Advisory basin mechanism

POLICY

Article 263
Inter-State

REGIONAL FORUMS

Five statutory Zonal Councils
NEC under separate 1971 Act

LEGAL

Article 263
Proof/effect

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

11

COMMON MARKET, COMMISSIONS AND CLOSE DISTINCTIONS

COMMON MARKET

301 freedom; 302 public interest; 303 preference bar
304(a) tax equality; 304(b) sanctioned restriction

RAJAM

Far-reaching

JUDICIAL CONTROL

Jindal Stainless, 2016
No tax-free market
Discrimination is central

SARKAR

Strong Union
356 last 10 years

FIRST ARC

ISC, delegation and State resources

PUNCH

Updated

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

12

ANSWER SPINE AND BALANCED REFORM

ASSENT / DIRECTIONS

Prompt reasons + text-bounded power

CESSES

Transparency

GST

Data + deliberation + dispute mechanism

BORROWING

Objective

RIVER WATER

Shared data + timely award + implementation

INTER-STATE

Regular

READ THE RAIL TOP TO BOTTOM; USE EACH PANEL AS ONE ANSWER PARAGRAPH.

POLICY COORDINATION

Article 263 + 1990 Order
Inter-State Council advice

LEGAL CONTINUITY

Article 261
Proof/effect + civil judgment execution

RAJAMANNAR

Far-reaching State-autonomy programme

SARKARIA

Strong Union, no over-centralisation
356 last resort; consultation; ISC

PUNCHHI

Updated Governor, council, fiscal and dispute proposals

CESSES / TRANSFERS

Transparent base + predictable release

BORROWING

Objective risk rules + reasons + adjudication

INTER-STATE COUNCIL

Regular agenda + published follow-up